

Court No. - 9

Case :- WRIT - C No. - 66022 of 2009

Petitioner :- Surbeer Singh

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Ramanuj Tripathi, O.P. Shukla

Respondent Counsel :- C.S.C.

Hon'ble Vijay Manohar Sahai, J.

Hon'ble Yogesh Chandra Gupta, J.

We have heard learned counsel for the petitioner, learned standing counsel appearing for respondents no.1 to 3 and Shri Rajesh Tripathi learned counsel appearing for respondents no.4 and 5. They are allowed one month time to file counter affidavit. Three weeks thereafter is allowed to the petitioner for filing rejoinder affidavit.

List thereafter.

The petitioner's electricity connection was temporarily disconnected on 1.4.1988 due to non payment of the bill and permanently disconnection was made on 22.12.1996.

The Regulation 17 of Electricity Supply Consumer Regulations, 1984 read with clause 4.37 and 4.38 of U.P. Electricity Supply Code, 2005 maximum period for which minimum charges could be taken from the petitioner is seven or eight months. Therefore, the petitioner is entitled for interim order.

Until further orders of this court, recovery proceedings initiated against the petitioner by the respondents in pursuance of citation dated 11.11.2009, annexure-4 to the writ petition shall remain stayed.

Order Date :- 4.12.2009

vs

Court No. - 36

Case :- WRIT - C No. - 66022 of 2009

Petitioner :- Surbeer Singh

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Ramanuj Tripathi, O.P. Shukla

Respondent Counsel :- C.S.C.

Hon'ble Prakash Krishna, J.

Hon'ble Yogesh Chandra Gupta, J.

No counter affidavit has been filed.

The writ petition stands admitted.

Three weeks further time is granted to file counter affidavit.

Order Date :- 19.1.2010

ALS

Court No. - 32

Case :- WRIT - C No. - 66022 of 2009

Petitioner :- Surbeer Singh

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- Ramanuj Tripathi, O.P. Shukla

Counsel for Respondent :- C.S.C., B Chaturvedi

Hon'ble Shashi Kant Gupta, J.

Hon'ble Pankaj Bhatia, J.

The list has been revised. None appears to press this petition.

The writ petition is, accordingly, dismissed in default.

Order Date :- 10.4.2019

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